

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #01	CCRB Case #: 201908395	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 09/11/2019 4:50 PM	Location of Incident: front of 1000 Sutter Avenue	18 Mo. SOL 10/26/2021	Precinct: 75
Date/Time CV Reported Wed, 09/11/2019 10:49 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/23/2019 11:19 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Dion Hinds	00000	936771	075 PCT
2. POM Nicholas Smith	23398	953421	075 PCT
3. POM Horacio Delgado	24175	953809	075 PCT
4. POM Michael Amello	17857	949999	075 PCT
5. POM Nicholas Martucci	01626	950838	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Dion Hinds	Force: Lieutenant Dion Hinds used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM Nicholas Smith	Force: Police Officer Nicholas Smith used physical force against § 87(2)(b)	B . Complainant Uncooperative
C . POM Horacio Delgado	Force: Police Officer Horacio Delgado used physical force against § 87(2)(b)	C . Complainant Uncooperative
D . POM Michael Amello	Force: Police Officer Michael Amello used physical force against § 87(2)(b)	D . Complainant Uncooperative
E . POM Nicholas Martucci	Force: Police Officer Nicholas Martucci used physical force against § 87(2)(b)	E . Complainant Uncooperative

Case Summary

On September 11, 2019, Sergeant Charles Barhold of the 75th Precinct called the IAB Command Center and reported § 87(2)(b) § 87(2)(b) complaint that officers used excessive force against him. On September 23, 2019, the complaint was received at the CCRB. The IAB log did not list any contact information for § 87(2)(b) § 87(2)(b).

On September 27, 2019, an NYPD's Booking and Arraignment Disposition System's search performed for § 87(2)(b) § 87(2)(b) yielded two potential mailing addresses and six potential phone numbers. On September 27, 2019, one of the six potential phone numbers was called. The number corresponded to § 87(2)(b) § 87(2)(b) mother, who answered and said § 87(2)(b) § 87(2)(b) was not available at the time, and provided § 87(2)(b) § 87(2)(b) cell phone number. On September 27, 2019 and September 30, 2019, two voicemail messages were left for § 87(2)(b) § 87(2)(b) at the phone number his mother provided.

On October 2, 2019, § 87(2)(b) § 87(2)(b) was called a third time. He answered, identified himself, said he could not speak at the time, and asked for a call back on October 3, 2019. On October 3, 2019, § 87(2)(b) § 87(2)(b) was called. A male whose voice resembled that of § 87(2)(b) § 87(2)(b) answered, and initially said § 87(2)(b) § 87(2)(b) was not available at the time. The male then asked the investigation to hold while he got § 87(2)(b) § 87(2)(b) on the phone, but then terminated the call. § 87(2)(b) § 87(2)(b) was called back immediately, but there was no response and a voicemail message was left.

On October 7, 2019, § 87(2)(b) § 87(2)(b) was called a fifth time. He answered, confirmed his contact information, and scheduled an interview at the CCRB for October 11, 2019. On October 9, 2019, a text message reminder was sent to § 87(2)(b) § 87(2)(b). However, On October 11, 2019, § 87(2)(b) § 87(2)(b) failed to appear for his scheduled interview without cancellation notice. On October 15, 2019, a voicemail message was left for § 87(2)(b) § 87(2)(b).

Between September 27, 2019 and October 11, 2019, three unreturned letters were mailed to § 87(2)(b) § 87(2)(b) at his confirmed mailing address.

On October 15, 2019, a search of the New York City Department of Corrections Inmate Lookup Service revealed that § 87(2)(b) § 87(2)(b) is not incarcerated.

To date, § 87(2)(b) § 87(2)(b) has missed one interview without cancellation notice, and has been unresponsive to the subsequent contact attempts detailed above. Given this, it is therefore recommended that this complaint be closed as **complainant uncooperative**.

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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